

AR.5 Forms & Documents Index

Every document you will meet — what it is, when it happens, and which office it comes from.

Before you use this document

This is a process reference, not legal advice. Arkansas adopts one building code for the whole state and forbids your city or county from adopting a different one — and then requires nobody to enforce it on a house. The building permit, the inspections and the certificate of occupancy exist only where a city or a county chose to create them, and across most unincorporated Arkansas nobody did. What does not depend on that choice is the code itself, the onsite wastewater permit, and the trade licensing rules. Confirm every item with the office that will actually handle your parcel before you rely on it. State form numbers were current in September 2026. Local forms are named by each jurisdiction and are not listed here.

THE STATE DOCUMENTS

These exist wherever you build in Arkansas. Note how few there are — and that the septic application is doing most of the work.

What exists statewide

Document	What it is	From
Form EHP-19 Individual Onsite Wastewater System Permit Application	The septic application, and the single most important piece of paper on a rural Arkansas build. Three parts: Part I the Permit for Construction, completed by your Designated Representative; Part II the installation inspection; Part III the Permit for Operation. You sign item 19, the Utilization Verification, attesting bedroom count and square footage — get it right, it sizes the system	Department of Health, through your county health unit
Site plan Onsite Wastewater Rules, Appendix F	Drawn as part of the septic application and more demanding than people expect. It has to show dimensioned property lines with the system tied to two of them, every setback distance, the well location and elevation, all wells and systems on adjoining property within 100 feet, the flagged percolation holes, and the flagged corners of both the primary and secondary absorption areas	Prepared by your Designated Representative
Well construction report 17 CAR § 11-401	Filed by whoever constructed the well within 90 days , carrying the longitude and latitude. "A copy of the construction report shall be provided to the customer upon demand" (§ 11-403) — so demand it. It is your only record of depth, casing and static water level, and a buyer's surveyor will ask for it	Arkansas Natural Resources Commission, Department of Agriculture

What exists statewide

Document	What it is	From
Notice to Owner Ark. Code Ann. § 18-44-115	A lien notice, and it protects you . On residential property of four or fewer units no lien may be acquired unless the owner received this notice, and "no lien may be claimed by any subcontractor, laborer, material supplier, or other lien claimant unless the owner... has received at least one (1) copy". The residential contractor's duty is to give it before work starts	From your contractor — keep it
Stormwater coverage Permit ARR150000	Only if total disturbance reaches one acre. Between one and five acres coverage is automatic with documents posted on site; at five acres and above a Notice of Intent is filed	Division of Environmental Quality
Access driveway permit	Needed where the driveway meets a state highway . A county road goes through the county Road Department instead, and a city street through the city	Department of Transportation
Homestead property tax credit	Filed after the build, with your county assessor — not with the state. The deadline is 15 October . New construction goes on the assessment rolls without you doing anything; the credit does not	County assessor

THE LOCAL DOCUMENTS — IF THEY EXIST WHERE YOU ARE

Every one of these is named by the office that issues it, so this table gives you the function and a line to write down what your jurisdiction calls it. In much of unincorporated Arkansas several of these rows will correctly read **none**.

Write in the local name, or NONE

	Item	Date	Notes
☐	Building permit application — exists only where a city or county created one Local name _____ Fee _____		
☐	Site or plot plan to the local standard, which may differ from the septic site plan Requirements _____		
☐	Electrical permit — local option under § 17-28-305(c) Local name _____ Fee _____		

Write in the local name, or NONE

	Item	Date	Notes
☐	Plumbing permit — mandatory where a water, sewer or gas utility system exists (§ 17-38-204(c)) Issuing body _____ Fee _____		
☐	Mechanical and gas permits Local name _____ Fee _____		
☐	Floodplain development permit — or the exemption certificate confirming you are outside the hazard area Office _____ Ref. _____		
☐	911 address assignment Office _____ Ref. _____		
☐	Driveway or culvert permit — county road or city street Office _____ Fee _____		
☐	Water tap and meter , or the well Provider _____ Fee _____		
☐	Sewer connection , if a main is within 300 feet — in which case connection is mandatory and no septic system may be used Provider _____ Fee _____		
☐	Certificate of occupancy — AFPC Vol. III § R110, issued only where a permit program exists Issued? _____		

WHAT NEEDS NO PERMIT AT ALL

Even inside a city that permits everything, the code exempts a specific list of work. Arkansas adopted this list **unamended**, so it is the same wherever you are. It is worth reading before you apply for anything, because several of these are the outbuildings people assume they must permit.

Exempt from permit — AFPC Volume III § R105.2

Work	Limit
Detached one-story accessory structures	200 sq ft or less of floor area — the shed, the pump house, the small shop
Fences	Not over 7 feet high
Retaining walls	Not over 4 feet measured from the bottom of the footing to the top of the wall, unless supporting a surcharge
Water tanks	Supported directly on grade, capacity 5,000 gallons or less, with a height-to-diameter ratio no greater than 2 to 1
Sidewalks and driveways	Though the connection to a public road is a separate permit — see the access driveway row above
Painting, papering, tiling, carpeting, cabinets, counters	Finish work generally
Prefabricated swimming pools	Less than 24 inches deep
Swings and other playground equipment	
Window awnings	Projecting no more than 54 inches , supported by an exterior wall
Decks	Not exceeding 200 sq ft , not more than 30 inches above grade at any point, not attached to a dwelling, and not serving the required exit door

Read September 2026 and confirmed unamended by Arkansas. Two cautions. **Exempt from permit is not exempt from the code** — § R105.2 says so in terms, and the structure still has to be built to standard. And the exemption is from the building permit only: a shed still has to respect your septic setbacks, and a deck near the absorption field still has to keep its distance.

WHAT ARKANSAS NEVER ADOPTED

This is the shortest section in the kit and it saves the most wasted effort. Arkansas struck **every appendix** out of its residential code: appendices "are NOT adopted by the State of Arkansas and shall not apply unless adopted by local ordinance" (§ R102.5). Among the things that removes from the state code:

- **Tiny houses.** The IRC's tiny-house appendix — the one that permits reduced ceiling heights, ladders and loft stairs — is not adopted. Without it a dwelling in Arkansas meets the full residential code, or it meets a local ordinance that adopted the appendix.
- **Strawbale, cob, light straw-clay and 3D-printed construction.** Each has an IRC appendix; none is adopted here. There is no state code path for these methods, which is not the same as a ban — it means you and an engineer will be designing to the performance requirements of the main code instead.
- **Radon control, solar-ready provisions, and the private sewage appendix.** The last of these matters least, because Arkansas replaced it explicitly: the code's own

cross-reference table says the international private sewage code "is replaced by" the Department of Health's onsite wastewater rules.

If you are building anything unusual, start here

Take the appendix question to your building official — or, if there is no building official, to the engineer who will stamp your design — **before you draw anything**. A local jurisdiction can adopt an appendix by ordinance, so the answer genuinely differs by jurisdiction, and it is a cheap question to ask early and an expensive one to discover late.

THE ONE THING YOU MAY NOT DO YOURSELF

Arkansas is unusually generous to the owner-builder. You may build your own house without a license. You may install your own septic system. You may drill your own well. Against that, one clear prohibition is worth restating on its own, because it surprises people who have read the rest:

You cannot design your own septic system

"Part I of the Permit Application form **shall be completed by a Designated Representative** and approved by the Department or its Authorized Agent prior to initiating construction" — Onsite Wastewater Rules § 4.10.1. The Designated Representative is a private licensed professional, not a state employee, and you hire them. The same rule adds, in capitals: **no changes or alterations may be made to the system prior to or during construction without prior approval of the Authorized Agent.**

Installing it yourself afterwards is a different question, and the statute preserves that right — the homeowner retains "all rights to install and repair his system" (§ 14-236-102(b)(2)). Confirm with your county Environmental Health Specialist how they want a homeowner-installed system documented, because the field practice is not written down anywhere.

*Everything cited here is free to read, in three places. Statutes (**Ark. Code Ann. § 14-56-202**) are at **arkleg.state.ar.us** under Arkansas Code — search the section number; the site hands off to a free Lexis viewer, so the address is not worth bookmarking. Agency rules are at **codeofarrules.arkansas.gov**, by Title: **012** Public Safety holds the Fire Prevention Code, **007** Health the wastewater rules. The building code reads free at **codes.iccsafe.org/codes/arkansas** — Volume III is residential. **One warning:** Act 841 of 2023 moved the State Fire Marshal out of the Arkansas State Police and repealed most of §§ 12-13-102 to 12-13-119, re-enacting those duties at **§ 20-22-1009**. Guides written before 2023 still cite the repealed sections. Read September 2026.*